

[2 & 3 GEO. 5.] *Military Lands Provisional Order* [Ch. cxvii.]
Confirmation Act, 1912.



CHAPTER cxvii.

An Act to confirm a Provisional Order of the Secretary of State for War made in pursuance of section two of the Military Lands Act 1892 authorising the purchase by the Territorial Force Association of the West Riding of the County of York of land for the provision of rifle ranges and for other military purposes. A.D. 1912.
[7th August 1912.]

WHEREAS the Secretary of State has made the Provisional Order set out in the schedule to this Act under the provisions of the Military Lands Act 1892 as applied by regulations made under section four of the Territorial and Reserve Forces Act 1907 and it is requisite that that Order should be confirmed by Parliament: 55 & 56 Vict.
c. 43.
7 Edw. 7.
c. 9.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order set out in the schedule to this Act is by this Act confirmed and all the provisions thereof shall have full validity and force from the date of the passing of this Act. Confirmation
of Order in
schedule.

2. This Act may be cited as the Military Lands Provisional Order Confirmation Act 1912. Short title.

A.D. 1912.

SCHEDULE.

DEER HILL RIFLE RANGES.

A Provisional Order made in pursuance of section two of the Military Lands Act 1892 authorising the purchase by the Territorial Force Association of the West Riding of the County of York of land for the provision of rifle ranges and for other military purposes.

WHEREAS the Territorial Force Association of the West Riding of the County of York (in this Order referred to as "the county association") are a county association duly established by a scheme made under 7 Edw. 7. c. 9, section one of the Territorial and Reserve Forces Act 1907:

55 & 56 Vict.
c. 43.

And whereas by section one of the Military Lands Act 1892 as applied by regulations made under section four of the Territorial and Reserve Forces Act 1907 (which Act as so applied is in this Order referred to as "the Act") a county association may with the consent of the Army Council purchase under the Act for any military purposes as defined in the Act any land as defined in the Act:

And whereas by section two of the Act the Secretary of State is empowered to make provisional orders authorising the taking of any such land by a county association for any such military purposes:

And whereas under section twenty-three of the Act the expression "military purposes" is defined to include rifle practice the building and enlarging of camps the erection of butts targets and batteries and military drill and the expression "land" is defined to include any easement in or over lands and for the purpose of (among other provisions) sections one and two of the Act any right of firing over lands or other right of user:

And whereas it is expedient for the purpose of providing for the Territorial Force rifle ranges sites for camps and areas for military exercises that the Secretary of State should authorise the county association to purchase under the Act the lands described in this Order:

And whereas plans showing the lands to be purchased and a book of reference thereto have been deposited with the clerk of the peace of the said West Riding of the County of York which plans and book of reference are herein-after referred to as the deposited plans and the deposited book of reference respectively:

And whereas the Army Council have consented to the purchase of the said lands by the county association:

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And whereas the county association have caused such notices to be served as are required by the Act and a petition to be presented to the Secretary of State in manner directed by the Act: A.D. 1912.

And whereas the Secretary of State has with reference to the purchase of the said lands caused such a public local inquiry to be held as is required by the Act and after that inquiry has been held is satisfied that the lands ought to be taken:

Now therefore I the Secretary of State in pursuance of the powers given to me by section two of the Act and any other enactment in that behalf do hereby order that from and after the date of the passing of the Act of Parliament confirming this Order the following provisions shall have effect:—

1. The county association may for the purpose of providing rifle ranges sites for camps and areas for military exercises purchase under section two of the Act and the Acts incorporated therewith the lands situate in or contiguous to the parishes of Marsden and Meltham in the said West Riding of the County of York which are more particularly delineated on the deposited plans and described in the deposited book of reference together with the easements and rights of user which are so delineated or described. Power to purchase lands under Military Lands Act 1892.

2. This Order may be cited as the Deer Hill Rifle Ranges Order 1912. Short title.

Given under the hand and seal of the Secretary of State this twenty-fifth day of April nineteen hundred and twelve.

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